

KRPAN et al v. SLIGHT et al

20CV44854

**DEFENDANTS' MOTIONS TO COMPEL
INITIAL DISCOVERY RESPONSES**

This is a civil action based on a residential real property transaction allegedly tainted by construction and undisclosed defects. Before the Court are a number of discovery motions, seeking responses from plaintiffs. Although plaintiffs' counsel has provided a myriad of explanations for his clients' delinquency, counsel has not sought a protective order or this Court's intervention to assist in any way. Instead, counsel has made what appear to be empty promises to comply. All of the motions on calendar this day are unopposed.

Motion #1: This motion is actually several motions in one, but under the circumstances this Court will forgive the failure to tender proper motion fees. (See Govt. Code §70617.) This is a refiling of the motion previously filed with a defective notice. Although plaintiffs filed opposition to *that* motion, they did not oppose the present one. The present motion was filed on 11/01/21 by the "Premier" realtor defendants, seeking verified responses to form interrogatories, special interrogatories and RPDs. The discovery was served on 05/25/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Germain Decl. Paras 4-13.) The motion to compel substantive, verified, objection-free responses, as well as the actual production of the requested documents, is GRANTED. Plaintiffs shall comply within 10 days, and shall forthwith reimburse moving parties the sum of \$510.00 (two hours at \$225 per hour + filing fee) as a discovery sanction. (See CRC 3.1348(a).)

Motion #2: This motion was filed on 11/12/21 by the "Wildwood" realtor defendants, seeking verified responses and documents responsive to an Request for Production of Documents. The discovery was served on plaintiffs on 06/08/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Anthony Decl Paras 2-7.) The motion to compel both a substantive, verified, objection-free response, as well as the actual production of the requested documents, is GRANTED. Plaintiffs shall comply within 10 days, and shall forthwith reimburse moving parties the sum of \$510.00 (two hours at \$225 per hour + filing fee) as a discovery sanction. (See CRC 3.1348(a).)

Motion #3: This motion was filed on 11/12/21 by the "Wildwood" realtor defendants, seeking an order deeming admitted all matters contained in their Requests for Admission. The RFAs were served on plaintiffs on 06/08/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Anthony Decl Paras 2-7.) This Court has reviewed the twenty-three (23) matters to admit, and confirms that each is a proper subject of inquiry in this case. As such, the motion to deem those twenty-

three (23) matters admitted for all purposes in this case is GRANTED. In addition, plaintiffs shall forthwith reimburse moving parties the sum of \$510.00 (two hours at \$225 per hour + filing fee) as a discovery sanction. (CCP §2033.280(c).)

Motion #4: This motion was filed on 11/12/21 by the “Wildwood” realtor defendants, seeking initial responses to form and special interrogatories. The discovery was served on plaintiffs on 06/08/21, and despite securing a number of extensions, plaintiffs have yet to respond. (See Anthony Decl Paras 2-7.) The motion to compel substantive, verified, objection-free responses to form and special interrogatories is GRANTED. Plaintiffs shall comply within 10 days, and shall forthwith reimburse moving parties the sum of \$510.00 (two hours at \$225 per hour + filing fee) as a discovery sanction. (See CRC 3.1348(a).)

The Clerk shall provide notice of this Ruling to the parties forthwith. Prevailing Defendants to prepare formal Orders for their respective motions pursuant to CRC 3.1312 in conformity with this ruling.